

HOUSE BILL No. 1330

DIGEST OF INTRODUCED BILL

Citations Affected: IC 3-10; IC 3-11-2-12; IC 6-1.1; IC 36-6-5; IC 36-7-11.2-11.

Synopsis: Elimination of township assessors. Abolishes the office of township assessor, in counties in which the office of township assessor has not already been abolished, if the county council and county commissioners unanimously vote to abolish the office and consolidate it with the office of the county assessor.

Effective: Upon passage; July 1, 2026.

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January 6, 2026, read first time and referred to Committee on Local Government.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1330

A BILL FOR AN ACT to amend the Indiana Code concerning elections.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 3-10-1-19, AS AMENDED BY P.L.227-2023,
2 SECTION 58, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]: Sec. 19. (a) The ballot for a primary election shall be
4 printed in substantially the form described in this section for all the
5 offices for which candidates have qualified under IC 3-8. **Subsection**
6 **(g)(5)(A) shall be included on the ballot only if the county council**
7 **and county commissioners have not, by a unanimous vote,**
8 **eliminated the office of township assessor and consolidated the**
9 **office with the county assessor.**

10 (b) The following shall be printed as the heading for the ballot for
11 a political party:

12 "OFFICIAL PRIMARY BALLOT

13 _____ Party (insert the name of the political party)".

14 (c) The following shall be printed immediately below the heading
15 required by subsection (b) or be posted in each voting booth as
16 provided in IC 3-11-2-8(b):

17 (1) For paper ballots, print: To vote for a person, make a voting



mark (X or ✓) on or in the box before the person's name in the proper column.

(2) For optical scan ballots, print: To vote for a person, darken or shade in the circle, oval, or square (or draw a line to connect the arrow) that precedes the person's name in the proper column.

(3) For optical scan ballots that do not contain a candidate's name, print: To vote for a person, darken or shade in the oval that precedes the number assigned to the person's name in the proper column.

(4) For electronic voting systems, print: To vote for a person, touch the screen (or press the button) in the location indicated.

(d) Local public questions shall be placed on the primary election ballot after the heading and the voting instructions described in subsection (c) (if the instructions are printed on the ballot) and before the offices described in subsection (g).

(e) The local public questions described in subsection (d) shall be placed as follows:

(1) In a separate column on the ballot if voting is by paper ballot.

(2) After the heading and the voting instructions described in subsection (c) (if the instructions are printed on the ballot) and before the offices described in subsection (g), in the form specified in IC 3-11-13-11 if voting is by ballot card.

(3) As provided by either of the following if voting is by an electronic voting system:

(A) On a separate screen for a public question.

(B) After the heading and the voting instructions described in subsection (c) (if the instructions are printed on the ballot) and before the offices described in subsection (g), in the form specified in IC 3-11-14-3.5.

(f) A public question shall be placed on the primary election ballot in the following form:

(The explanatory text for the public question,
if required by law.)

"Shall (insert public question)?"

☐ YES

☐ NO

(g) The offices with candidates for nomination shall be placed on the primary election ballot in the following order:

(1) Federal and state offices:

(A) President of the United States.

(B) United States Senator.

(C) Governor.



- 1 (D) United States Representative.
- 2 (2) Legislative offices:
- 3 (A) State senator.
- 4 (B) State representative.
- 5 (3) Circuit offices and county judicial offices:
- 6 (A) Judge of the circuit court, and unless otherwise specified
- 7 under IC 33, with each division separate if there is more than
- 8 one (1) judge of the circuit court.
- 9 (B) Judge of the superior court, and unless otherwise specified
- 10 under IC 33, with each division separate if there is more than
- 11 one (1) judge of the superior court.
- 12 (C) Judge of the probate court.
- 13 (D) Prosecuting attorney.
- 14 (E) Circuit court clerk.
- 15 (4) County offices:
- 16 (A) County auditor.
- 17 (B) County recorder.
- 18 (C) County treasurer.
- 19 (D) County sheriff.
- 20 (E) County coroner.
- 21 (F) County surveyor.
- 22 (G) County assessor.
- 23 (H) County commissioner.
- 24 (I) County council member.
- 25 (5) Township offices:
- 26 (A) Township assessor (only in a township referred to in
- 27 IC 36-6-5-1(d)).
- 28 (B) Township trustee.
- 29 (C) Township board member.
- 30 (D) Judge of the small claims court.
- 31 (E) Constable of the small claims court.
- 32 (6) City offices:
- 33 (A) Mayor.
- 34 (B) Clerk or clerk-treasurer.
- 35 (C) Judge of the city court.
- 36 (D) City-county council member or common council member.
- 37 (7) Town offices:
- 38 (A) Clerk-treasurer.
- 39 (B) Judge of the town court.
- 40 (C) Town council member.
- 41 (h) The political party offices with candidates for election shall be
- 42 placed on the primary election ballot in the following order after the



offices described in subsection (g):

- (1) Precinct committeeman.
- (2) State convention delegate.

(i) The local offices to be elected at the primary election shall be placed on the primary election ballot after the offices described in subsection (h).

(j) The offices described in subsection (i) shall be placed as follows:

- (1) In a separate column on the ballot if voting is by paper ballot.
- (2) After the offices described in subsection (h) in the form specified in IC 3-11-13-11 if voting is by ballot card.

(3) Either:

- (A) on a separate screen for each office or public question; or
- (B) after the offices described in subsection (h) in the form specified in IC 3-11-14-3.5;

if voting is by an electronic voting system.

(k) If no candidate has filed to run for an office on the primary ballot then the county election board may print "NO CANDIDATE FILED" in the place on the ballot where a candidate's name would have been printed.

SECTION 2. IC 3-10-2-13, AS AMENDED BY P.L.278-2019, SECTION 41, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 13. The following public officials shall be elected at the general election before their terms of office expire and every four (4) years thereafter:

- (1) Clerk of the circuit court.
- (2) County auditor.
- (3) County recorder.
- (4) County treasurer.
- (5) County sheriff.
- (6) County coroner.
- (7) County surveyor.
- (8) County assessor.
- (9) County commissioner.
- (10) County council member.
- (11) Township trustee.
- (12) Township board member.
- (13) Township assessor (only in a township referred to in IC 36-6-5-1(d)).
- (14) Judge of a small claims court.
- (15) Constable of a small claims court.

The public official described in subdivision (13) shall be elected only if the county council and county commissioners have not, by



a unanimous vote, eliminated the office of township assessor and consolidated the office with the county assessor.

SECTION 3. IC 3-11-2-12, AS AMENDED BY P.L.40-2025, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 12. (a) **Subject to subsection (c)**, the following offices shall be placed on the general election ballot in the following order after the public questions described in section 10(a) of this chapter:

(1) Federal and state offices:

- (A) President and Vice President of the United States.
- (B) United States Senator.
- (C) Governor and lieutenant governor.
- (D) Secretary of state.
- (E) State comptroller (auditor of state).
- (F) Treasurer of state.
- (G) Attorney general.
- (H) United States Representative. If an election to fill a vacancy in an office of United States Representative under IC 3-10-8 is held on the same day as the election for the next term of the same office, the ballot shall list the election to fill the vacancy in the office immediately after the election for the next term of the office.

(2) Legislative offices:

- (A) State senator.
- (B) State representative.

(3) Circuit offices and county judicial offices:

- (A) Judge of the circuit court, and unless otherwise specified under IC 33, with each division separate if there is more than one (1) judge of the circuit court.
- (B) Judge of the superior court, and unless otherwise specified under IC 33, with each division separate if there is more than one (1) judge of the superior court.
- (C) Judge of the probate court.
- (D) Prosecuting attorney.
- (E) Clerk of the circuit court.

(4) County offices:

- (A) County auditor.
- (B) County recorder.
- (C) County treasurer.
- (D) County sheriff.
- (E) County coroner.
- (F) County surveyor.



- 1 (G) County assessor.
 2 (H) County commissioner.
 3 (I) County council member.
 4 (5) Township offices:
 5 (A) Township assessor (only in a township referred to in
 6 IC 36-6-5-1(d)).
 7 (B) Township trustee.
 8 (C) Township board member.
 9 (D) Judge of the small claims court.
 10 (E) Constable of the small claims court.
 11 (6) City offices:
 12 (A) Mayor.
 13 (B) Clerk or clerk-treasurer.
 14 (C) Judge of the city court.
 15 (D) City-county council member or common council member.
 16 (7) Town offices:
 17 (A) Clerk-treasurer.
 18 (B) Judge of the town court.
 19 (C) Town council member.
 20 (b) If a major political party does not nominate a candidate for an
 21 office on a general, municipal, or special election ballot then the county
 22 election board may print "NO CANDIDATE FILED" in the place on
 23 the ballot where the name of the major political party's nominee would
 24 be printed.
 25 **(c) The office described in subsection (a)(5)(A) shall be placed**
 26 **on the general election ballot only if the county council and county**
 27 **commissioners have not, by a unanimous vote, eliminated the office**
 28 **of township assessor and consolidated the office with the county**
 29 **assessor.**
 30 SECTION 4. IC 6-1.1-5-9, AS AMENDED BY P.L.146-2008,
 31 SECTION 88, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 32 JULY 1, 2026]: Sec. 9. In a county containing a consolidated city, **if**
 33 **the county council and county commissioners have not, by a**
 34 **unanimous vote, eliminated the office of township assessor:**
 35 (1) the township assessor has the duties and authority described
 36 in sections 1 through 8 of this chapter; and
 37 (2) the county assessor has the duties and authority described in
 38 sections 1 through 8 of this chapter for a township for which there
 39 is no township assessor.
 40 These duties and authority include effecting the transfer of title to real
 41 property and preparing, maintaining, approving, correcting, indexing,
 42 and publishing the list or record of, or description of title to, real



property. If a court renders a judgment for the partition or transfer of real property located in a county containing a consolidated city, the clerk of the court shall deliver the transcript to the county assessor.

SECTION 5. IC 6-1.1-18.5-4.5, AS AMENDED BY P.L.1-2010, SECTION 29, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4.5. The department of local government finance shall adjust the maximum permissible ad valorem tax levy of each county and township to reflect any transfer of duties between assessors under IC 36-2-15-5, ~~or~~ IC 36-6-5-2 (repealed), **IC 36-6-5-5, or IC 36-6-5-6.**

SECTION 6. IC 36-6-5-3, AS AMENDED BY P.L.146-2008, SECTION 711, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. (a) Except as provided in subsection (b), the assessor shall perform the duties prescribed by statute, including assessment duties prescribed by IC 6-1.1.

(b) Subsection (a) does not apply if the duties of the township assessor have been transferred to the county assessor ~~as described in IC 6-1.1-1-24 or IC 36-2-15:~~ **if the county council and county commissioners have, by a unanimous vote, eliminated the office of township assessor and consolidated the office with the county assessor.**

SECTION 7. IC 36-6-5-5 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE UPON PASSAGE]: Sec. 5. (a) **The county council and county commissioners in a county may eliminate the office of township assessor in the county if each entity adopts an ordinance to do so by unanimous vote. If the office of a township assessor is eliminated as the result of the county council's and county commissioners' unanimous vote eliminating the office of township assessor, the following apply on the date the office is eliminated, as provided in the ordinances adopted by the county council and county commissioners:**

(1) **The office of township assessor for that township is abolished on January 1 following the adoption of the ordinances.**

(2) **The county assessor of the county in which the township is located shall assume the duties of the township assessor on January 1 following the adoption of the ordinances.**

(3) **All of the following are transferred to the county assessor on January 1 following the adoption of the ordinances:**

(A) **All employment positions of all employees of the township assessor.**



(B) The real and personal property of the township assessor.

(C) The obligations outstanding on the date the office of township assessor is eliminated.

(D) The funds of the township assessor.

(b) An employee of the office of the township assessor on the date the office of the township assessor is eliminated is entitled to remain in the employee's position transferred under subsection (a) until the earlier of the following:

(1) The employee resigns from the position.

(2) The employee's employment is terminated. However, an employee described in this subsection may be terminated only in the same manner that other employees of the county assessor may be terminated.

(c) The county auditor shall transfer to the county assessor all revenue received by the township:

(1) through the date that the office of the township assessor is eliminated; and

(2) for the purpose of carrying out property assessment duties;

in the amount determined by the county auditor.

SECTION 8. IC 36-6-5-6 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6. (a) Each county assessor and township assessor whose duties will be transferred under this chapter shall:

(1) organize the records of the assessor's office relating to the assessment of tangible property in a manner prescribed by the department of local government finance; and

(2) transfer the records as directed by the department of local government finance.

(b) The department of local government finance shall determine a procedure and schedule for the transfer of the records and operations. The assessors shall assist each other and coordinate their efforts to:

(1) ensure an orderly transfer of all records; and

(2) provide for an uninterrupted and professional transition of the functions of assessors consistent with this chapter, IC 6-1.1, and the directions of the department of local government finance.

SECTION 9. IC 36-7-11.2-11, AS AMENDED BY P.L.219-2007, SECTION 121, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 11. As used in this chapter, "notice"



means written notice:

(1) served personally upon the person, official, or office entitled to the notice; or

(2) served upon the person, official, or office by placing the notice in the United States mail, first class postage prepaid, properly addressed to the person, official, or office. Notice is considered served if mailed in the manner prescribed by this subdivision properly addressed to the following:

(A) The governor, both to the address of the governor's official residence and to the governor's executive office in Indianapolis.

(B) The Indiana department of transportation, to the commissioner.

(C) The department of natural resources, both to the director of the department and to the director of the department's division of historic preservation and archeology.

(D) The department of metropolitan development.

(E) An occupant, to:

(i) the person by name; or

(ii) if the name is unknown, the "Occupant" at the address of the Meridian Street or bordering property occupied by the person.

(F) An owner, to the person by the name shown to be the name of the owner, and at the person's address, as the address appears in the records in the bound volumes of the most recent real estate tax assessment records as the records appear in:

(i) the offices of the township assessors **in a county where the county council and county commissioners have not, by a unanimous vote, eliminated the office of township assessor;** or

(ii) the office of the county assessor;
in Marion County.

(G) A neighborhood association or the society, to the organization at the latest address as shown in the records of the commission.

SECTION 10. [EFFECTIVE JULY 1, 2026] **(a) The legislative services agency, under the supervision of the code revision committee, shall prepare legislation for introduction during the 2027 session of the general assembly to amend Indiana law to make necessary corrections and changes in the Indiana Code to reflect the abolition of the office of township assessor.**

(b) This SECTION expires July 1, 2030.



1 **SECTION 11. An emergency is declared for this act.**

